

Court No. - 2

Case :- WRIT - C No. - 66339 of 2009

Petitioner :- M/S. Rajendra Engineering Udyog Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kr. Shukla,A.N. Singh

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

Connect with Writ Petition No. 58168 of 2009.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Pankaj Shukla, learned counsel appearing for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 1.10.2009 passed by respondent no.2. Learned Counsel for the petitioner submits that security is being asked under Para 4.20 of U.P. Electricity Supply Code, 2005. Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (M/s Vehlina Steels & Alloys Pvt. Ltd. and another Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another).

Learned counsel for the respondents submits that in several matters identical questions are involved.

List this Writ Petition along with other similar matters. Learned Standing Counsel shall give a list of cases in which similar issues are related to the year 2009.

In view of interim order as already granted in Writ Petition No. 30582 of 2009 as referred above, it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 7.12.2009

AM/-

Court No. - 3

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Counsel for Petitioner :-

Counsel for Respondent :- S.C., Nipendra Mishra

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

None for the petitioner even when the case is called in revised list.

Sri Nipendra Mishra, learned counsel for respondent nos. 1 and 2.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 19.11.2018

Sattyarth/Israr